

		the same objections). (Declaration of John K. Rubiner, Ex. B.) Thus, Defendant complied with the Discovery Order. To the extent Plaintiff seeks further responses pursuant to <i>Code of Civil Procedure</i> section 2033.290 (see Motion, pp. 1, 4), such a motion is procedurally defective because it is not accompanied by a meet and confer declaration or a separate statement. (<i>Code of Civ. Proc.</i> § 2030.290, subd. (b)(1), (2); <i>Cal. Rules of Court</i>, rule 3.1345(c).) Moreover, the motion fails on the merits. Responses to requests for admission must be “as complete and straightforward as the information reasonably available to the responding party permits.” (<i>Code Civ. Proc.</i>, § 2033.220, subd. (a).) “Each answer shall: [¶] (1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party. [¶] (2) Deny so much of the matter involved in the request as is untrue. [¶] (3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.” (<i>Id.</i>, subd. (b).) In lieu of admitting or denying the request, the party may serve objections to particular requests. (<i>Code of Civ. Proc.</i> § 2033.210, subd. (b).) If only part of a request is objectionable, the remainder must be answered. (<i>Code of Civ. Proc.</i> § 2033.230, subd. (a).) Here, the Court previously overruled Defendant’s objections because the responses contained objections only – meaning that Defendant could not hide behind the objections to avoid providing a substantive response. Now that Defendant has provided a substantive response to RFA nos. 17 and 18 with denials, the objections merely qualify the denials, <i>i.e.</i>, “[d]eny so much of the matter involved in the request is untrue.” (<i>Code Civ. Proc.</i>, § 2033.220, subd. (b)(2).) In other words, Defendant objects to only part of the request. This is proper under the code. The motion is therefore DENIED. <i>Defendant shall give notice of this ruling.</i>
9.	Sakasamo v. Adidev Technologies, Inc. 25-1334503	The demurrer of defendant Adidev Technologies, Inc. (Adidev) directed to the complaint of plaintiff Sisiamé B. Sakasamo (Plaintiff) is OVERRULED IN PART and SUSTAINED IN PART with 20 days leave to amend. As an initial matter, the Court declines to consider Plaintiff’s untimely opposition. The opposition was filed four days late. The opposing papers do not set forth good cause for the tardiness, nor is there any explanation whatsoever for the late filing. The Court thus exercises its discretion to refuse to consider the late filed papers. (<i>Cal. Rules of Ct.</i>, rule 3.1300(d).) Second Cause of Action for Breach of the Implied Covenant of Good Faith and Fair Dealing A breach of the implied covenant of good faith and fair dealing involves something beyond breach of the contractual duty itself. (<i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371,

		1394.) "If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated." (<i>Id.</i> at 1395.) Contrary to Adidev's argument, the second cause of action does not appear duplicative of the breach of contract claim. The breach of contract cause of action alleges defendants breached the agreement by: "(a) failing to provide any meaningful ongoing services after initial placement; (b) failing to provide technical tools, software, or resources despite Plaintiff's requests; (c) admitting in writing through their representative Naziya that they 'usually don't' provide ongoing services; (d) providing only two weeks of temporary housing during relocation and no other substantial services; and (e) collecting payments while providing no consideration or services in return." (Compl., ¶ 33.) The cause of action for breach of implied covenant, by contrast, is based on, among other things, allegations that defendants "consistently avoided written communications regarding service inquiries" and refused a request for a temporary payment deferral due to Plaintiff's financial hardship. (See Compl., ¶ 38.) These allegations go beyond a mere contract breach. The demurrer to the second cause of action is OVERRULED. Third Cause of Action for Constructive Fraud and Fourth Cause of Action for Misrepresentation to Induce Relocation (<i>Lab. Code §970</i>) Adidev is correct that these fraud-based claims are not pled with the requisite specificity. The causes of action refer to "Defendants" generally and thus fail to differentiate between representations allegedly made by Adidev and those made by TP-Link Systems, Inc. In addition, the causes of action fail to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written, as required for fraud claims against a corporation. (<i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157.) Accordingly, the demurrer to the third and fourth causes of action on this ground is SUSTAINED with 20 days leave to amend. <i>Counsel for Adidev shall give notice.</i>
10.	Dodd v. Ford Motor Company 25-1465355	Before the Court is a Demurrer by defendant Ford Motor Company ("Ford") to plaintiff's First Amended Complaint ("FAC"). The Demurrer is OVERRULED as to the 1st through 3rd causes of action and SUSTAINED as to the 4th and 6th causes of action, with 14 days leave to amend. Song Beverly Act claims (1st through 4th causes of action):